

Consortium of Societies Ghaziabad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 22 November 2018 · Writ-C No. 38300 of 2018 · **Notice issued; stay extended; Clause 4.9 vires pending.**

HEADNOTE

Allahabad High Court issues notice on a writ challenging Clause 4.9 of the U.P. Electricity Supply Code, 2005 (Thirteenth Amendment, 2018) as ultra vires for introducing multiple-point supply, permits a time-extension application under that clause, and later extends stay, without deciding validity.

FACTUAL SUMMARY

A consortium of societies in Ghaziabad challenged Clause 4.9 of the U.P. Electricity Supply Code, 2005, as notified on 10 August 2018, as ultra vires. They contended that the amendment introduced multiple-point supply contrary to the Electricity (Removal of Difficulties) (Eighth) Order, 2005. The High Court issued notice, later permitted an application for time-extension before the competent authority under Clause 4.9, and on further listings extended the stay while the writ remained pending.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interlocutory listing of Clause 4.9 vires challenge

HOLDING

On a writ challenging Clause 4.9 of the U.P. Electricity Supply Code, 2005 (Thirteenth Amendment, 2018) as ultra vires for providing multiple-point supply, the Court issued notice and held that the matter required consideration. A later bench permitted the petitioners to apply to the competent authority for extension of time under Clause 4.9; subsequent listings extended the stay. Validity of Clause 4.9 was not decided. ¶ 1-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.9 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 (THIRTEENTH AMENDMENT, 2018) IS ULTRA VIRES FOR PROVIDING MULTIPLE-POINT SUPPLY

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